



United States Department of the Interior

INTERIOR BUSINESS CENTER
Washington, DC 20240

COMBINED SYNOPSIS/SOLICITATION 140D0426Q0436

This requirement is being issued by the United States Department of the Interior (DOI), Interior Business Center (IBC), Acquisition Services Directorate (AQD), on behalf of Department of Health and Human Services (HHS), National Institutes of Health (NIH), National Cancer Institute (NCI), Center for Cancer Research (CCR). AQD operates as a Federal Franchise Fund Contracting Office under the authority of the Government Management Reform Act and provides contracting support to Federal Civilian and Department of Defense Agencies. AQD will handle the solicitation and resultant order administration, as well as payment of invoices.

SECTION 1 – COMBINED SYNOPSIS/SOLICITATION

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with Revolutionary Federal Acquisition Regulations Overall (RFO) Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number 140D0426Q0436 is issued as a Request for Quote (RFQ) for one Robotic Arm Replacement and Scheduling Software Integration Services for an Automated High Throughput Imaging Platform.

This is a set-aside for small business concerns.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

List of item numbers:

Item Description	Quantity (Units)	Total (\$)
Robotic Arm Replacement and Scheduling Software Integration Services	1	\$TBD *
Freight	1	\$TBD *
Total		\$TBD *

* = The offeror shall provide these dollar amounts in the price quote.

Description of the Requirements for the items to be acquired, including documentation supporting any brand name description (See 12.102): This item is for one Robotic Arm Replacement and Scheduling Software Integration Services for Automated High Throughput Imaging Platform.

Date(s) and place(s) of delivery and acceptance and F.O.B. Point: Delivery will occur within four months including delivery, installation, and training (12 weeks delivery followed by within a 10 business-day installation, followed by within a 10 business-day on-site training). Delivery and installation will occur at the United States Department of Health and Human Services (HHS), National Institutes of Health (NIH), National Cancer Institute (NCI), Center for Cancer Research (CCR), 41 Medlars Drive, Bethesda, MD 20892.

A list of solicitation provisions that apply to the acquisition (See 12.205(a)): See Section 5 of the solicitation.

A list of contract clauses that apply to the acquisition (See 12.205(b)): See Section 6 of the solicitation.

Date, time, and place for receipt of offer and point of contact: Quotes submitted in response to this RFQ must be emailed to Melissa_Onyszko@ibc.doi.gov no later than **9 AM Eastern Time, May 21, 2026** to be considered for award. Questions related to this Request for Quote (RFQ) package must be emailed to Melissa_Onyszko@ibc.doi.gov not later than **12 PM Eastern Time,**

May 13, 2026. Any questions received after the specified cut-off date and time will not be accepted or answered. Please be advised that the Government reserves the right to transmit questions and answers of a common interest to all prospective offerors. No oral questions will be accepted.

Please be advised that it is the offeror's responsibility to ensure the Government receives your submission via the method and to the location specified in the solicitation on or before the specified due date and time. The Government reserves the right to reject quotes that are not submitted in accordance with these instructions. The Government reserves the right to reject late quotes.

Any additional information required by 5.101(c):The North American Industry Classification System (NAICS) code applicable to this requirement is 334516 "Analytical Laboratory Instrument Manufacturing," size standard 1,000 employees. The Product Service Code is 6650 "Optical Instruments, Test Equipment, Components and Accessories."

SECTION 2 – QUOTE PREPARATION INSTRUCTIONS

In order to participate in this acquisition, the offeror must submit the following:

- On cover page or price quote include:
 - Name and Address of offeror
 - Phone number and email address for offeror point of contact
 - Corresponding solicitation number and acknowledgement of amendments
 - Unique Entity ID (UEI) in System for Award Management (SAM)
- Completed Provisions-See Attachment 1
- Technical quote: The offeror shall indicate their capability to install the robotic arm on an existing table and to install scheduling software on existing controlling workstation, capability of the scheduling software to integrate with Yokogawa CV8000 high-throughput microscope, and compatibility of the robotic arm to work with existing room temperature plate hotels. See pictures of the existing arm, solicitation Attachments 2,3,4.
- Firm-fixed-price quote submitted as a Microsoft Excel spreadsheet. Include at a minimum, the item number, unit price, total price for all items of same item, any other direct costs, and the total overall price.
- Assumptions (if any). If not noted in this section of your quote, it will be assumed that the Contractor proposes no assumptions for award and agrees to comply with all of the terms and conditions as set forth herein. The Government will not seek out and identify assumptions, conditions, or exceptions buried within the Contractor's submission.
- Completed Voluntary Product Accessibility Template (VPAT) (See Attachment 5; <https://www.itic.org/policy/accessibility/vpat> has an editable version)

Offeror agrees to hold the prices in its quote firm for at least 90 calendar days. Offerors must submit one quote and are not encouraged to submit multiple quotes. Partial quotes will not be accepted. The Government intends to issue one award.

The offeror must ensure that your firm is currently registered in SAM at www.sam.gov at the time of quote submission and at the time of award.

Discounts are requested.

SECTION 3 - EVALUATION OF QUOTES AND BASIS FOR AWARD

The Government will make award utilizing the streamlined procedures at RFO 12.201. The Contracting Officer (CO) will conduct the acquisition utilizing tradeoffs between the technical solution and price, where the technical solution is more important than price. The CO will award to the offeror presenting the best value considering the technical solution and price.

- Technical solution: The offeror demonstrated the capability to install the robotic arm on an existing table and to install scheduling software on the existing controlling workstation. The offeror demonstrated the capability of the scheduling software to integrate with Yokogawa CV8000 high-throughput microscope and the compatibility of the robotic arm to work with existing room temperature plate hotels.
- Price: The quote will be evaluated under RFO 12.203 and price reasonableness will be determined in accordance with RFO 12.209.

The COR will review the Completed Voluntary Product Accessibility Template (VPAT) to confirm it is acceptable.

The CO will review the information in the Contractor Performance Assessment Reporting System (CPARS) and SAM Responsibility / Qualification (R/Q) for the prospective awardee in order to perform a responsibility determination as required by FAR 9.104.

The Government reserves the right not to make an award, if in the opinion of the Government the submission would not provide satisfactory performance at a cost that is considered fair and reasonable and/or economically feasible.

SECTION 4 – STATEMENT OF NEED

1.0 TITLE

Procurement of Robotic Arm Replacement and Scheduling Software Integration Services for Automated High-Throughput Imaging Platform

2.0 BACKGROUND

This requirement is for the NIH, NCI, CCR, Laboratory of Receptor Biology and Gene Expression (LRBGE), High-Throughput Imaging Facility (HiTIF).

HiTIF operates an automated high-throughput imaging platform used to conduct multi-plate imaging experiments in support of NIH research programs. The prior robotic arm integrated within the legacy imaging system is obsolete and no longer functional. Restoration of automated plate handling capability is required to support integration with a newly acquired, but separate from this project, Yokogawa CV8000 high-throughput imaging system.

The Yokogawa CV8000 will have to be integrated with an existing NIH-owned automation platform infrastructure that remains serviceable. This platform includes:

- A pre-positioned robotic mounting table
- Three vertically configured auxiliary plate hotels (14-plate capacity each; total 42 plates)
- Integrated safety shielding and interlocks
- A fixed barcode reader
- A dedicated control workstation

The automation platform operates through an existing scheduling software architecture that coordinates robotic motion, plate handling, barcode tracking, and instrument interface commands. Replacement of the robotic arm must maintain compatibility with this established automation platform architecture.

3.0 OBJECTIVES

The objective of this requirement is to procure and integrate a robotic arm system capable of automated microplate handling within the existing NIH automation platform.

The robotic system shall:

- Automate the transfer of microplates between auxiliary plate hotels and the CV8000 instrument nest
- Coordinate plate loading and unloading sequences
- Operate through the existing scheduling software architecture
- Maintain compatibility with barcode tracking and safety configurations
- Support unattended operation of multi-plate imaging workflows

The equipment will be used to perform automated high-throughput imaging experiments involving SBS-compliant microplates in various well formats. The desired result is restoration of reliable, automated plate handling capability within the established automation platform.

4.0 TECHNICAL REQUIREMENTS

4.1 PRODUCT FEATURES/SALIENT CHARACTERISTICS

The following minimum physical, functional, and performance characteristics are required:

- Quantity
One (1) robotic arm system with required mounting hardware and software integration components.
- Hardware Requirements
The robotic system shall:
 - Be a multi-axis robotic arm suitable for laboratory automation applications
 - Support handling of SBS-compliant microplates (including 6-, 96-, 384-, and 1536-well formats)
 - Provide sufficient horizontal and vertical reach to access:
 - The existing robotic mounting table
 - Three vertically configured auxiliary plate hotels (14 plates each)
 - The CV8000 instrument nest
 - Support precise and repeatable plate placement to ensure proper alignment with the instrument interface
 - Be compatible with existing safety shielding and interlock configurations
 - Mount securely to the existing NIH-owned robotic table without requiring structural modification of the laboratory space
- Software and Integration Requirements
The system shall:
 - Be integrated with the scheduling software controlling the automation platform
 - Support coordination of robotic motion, plate handling, barcode tracking, and instrument interface commands
 - Interface with the Yokogawa CV8000 instrument control software
 - Allow automated execution of plate transfer sequences between auxiliary plate hotels and the CV8000
 - Maintain compatibility with the existing barcode reader

The Contractor shall provide all necessary software configuration and integration services to ensure full operational compatibility within the established automation platform.

- Physical and Compatibility Requirements
The robotic system must:
 - Operate within the fixed geometry of the existing automation platform
 - Align with pre-positioned plate hotels and mounting surfaces
 - Maintain compatibility with existing safety enclosures
 - Not require redesign of the automation platform layout

4.2 TRAINING

Within ten (10) business days after installation, one (1) day of onsite training shall be provided for up to four (4) users of the equipment on operation, basic troubleshooting, and routine maintenance of the robotic system and associated software.

All training expenses, including materials and travel, shall be included in the total price.

4.3 SPECIAL ORDER REQUIREMENTS

The Contractor shall ensure that integration of the robotic system does not alter or interfere with the operational integrity of the Government-owned CV8000 imaging system.

If applicable, the Contractor shall comply with all NIH facility access and information security requirements.

No external data sharing agreements or material transfer agreements are required for this procurement.

5.0 TYPE OF ORDER

This is a Firm Fixed-Price Order.

6.0 PRICE SCHEDULE

The total fixed price of this contract is TBD.

Item Description	Quantity (Units)	Total (\$)
Robotic Arm Replacement and Scheduling Software Integration Services	1	TBD
Other Direct Costs (Freight)	1	TBD
Total	1	TBD

7.0 DELIVERY / INSTALLATION

Delivery shall occur within 12 weeks of award.

All shipping, handling, and installation costs shall be included in the total price (F.O.B. Destination).

Upon shipment, the Contractor shall provide the NCI Technical Point of Contact (TPOC) with a shipping tracking number.

Installation shall occur within ten (10) business days of delivery and shall be performed by, or under the direct supervision of, an Original Equipment Manufacturer (OEM) certified technician.

Equipment shall be delivered and installed at:

LRBGE, NCI, NIH
41 Medlars Dr,
Building 41, Room C508
Bethesda, MD 20892

7.2 TECHNICAL POINT OF CONTACT

All work delivered to the Contracting Officers Representative (COR) or Technical Point of Contact (TPOC) will be deemed to have been accepted upon written confirmation of acceptance

by the COR/TPOC. The COR/TPOC's approval or revision to the work delivered shall be within the general scope of work for the Order.

The following individual shall be the COR/TPOC for this task order:

Laurent Ozbun, PhD
LRBGE, NCI, NIH
ozbunl@nih.gov
240-760-6688
41 Medlars Dr, Building 41, Room B911
Bethesda, MD 20892

Performance of work under this Order must be subject to the technical direction of the COR/TPOC identified above. The term "technical direction" includes direction to the Contractor that fills in details and otherwise serves to ensure that tasks outlined in this requirements document are accomplished satisfactorily. Technical direction must be within the scope of this requirements document.

Technical direction may be oral or in writing. The COR/TPOC shall confirm oral direction in writing within five business days, with a copy to the Contracting Officer. The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR/TPOC. If, in the opinion of the Contractor, any direction of the COR/TPOC, or their designee, falls within the limitations set forth in this Order, the Contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government business day.

8.0 WARRANTY

The Contractor shall warrant all supplies furnished under this award against any defects in design, material, or manufacture for a period of at least 12-months from date of installation. The Contractor shall also warrant and imply that all items delivered as a result of this Order are merchantable and fit for use for the particular purpose described in the order in accordance with FAR 52.212-4(o).

If a defect results in lost or decreased performance of supplies or services furnished under this Order, the Contractor shall cover all parts, materials, labor, and/or travel expenses required to repair or replace the supplies at no cost to the Government.

Supplies which are repaired or replaced shall be warranted for the remainder of the initial warranty period or for 90-days – whichever is greater.

9.0 HHS Digital Accessibility Conformance Standards

Section 508 of the Rehabilitation Act, as amended by the Workforce Investment Act of 1998 (P.L. 105-220) requires that when Federal agencies develop, procure, maintain, or use information and communication technology (ICT), it shall be accessible to people with

disabilities. Federal employees and members of the public who have disabilities must have access to, and use of, information and data that is comparable to people without disabilities.

All products, platforms and services delivered as part of this solicitation that are ICT, or contain ICT, must conform to all HHS digital accessibility conformance standards identified in the [HHS Digital Accessibility Conformance Checklists](#). The standards include the Revised 508 Standards, which are located at 36 C.F.R. § 1194.1 & Apps. A, B, & C, and available at <https://www.access-board.gov/ict/>.

All requirements are applicable to support services and documentation deliverables. All functional performance criteria apply when using an alternative design or technology that achieves substantially equivalent or greater accessibility and usability by individuals with disabilities, than would be provided by conformance to one or more of the requirements in Chapters 4-6 of the Revised 508 Standards, or when Chapters 4-6 do not address one or more functions of ICT.

The standards listed below apply to all functionality of the supplies, products, platforms, information, documentation, training, and services that are part of this contract. 508 Chapter 2:

- E207 Software
- E208 Support Documentation and Services
- 255 Chapter 2:
 - C205 Software
 - C206 Support Documentation and Services
- Chapter 5: Software
- Chapter 6: Support Services and Documentation Requirements

Offerors must explain how the development/creation efforts associated with the objectives will be measured to achieve HHS digital accessibility conformance standards and meet the legal framework of Section 508 standards. For each proposed supply, license, product, or platform, a fully completed Accessibility Conformance Report (ACR) must be submitted. An ACR can be built from the [Voluntary Product Accessibility Template \(VPAT\)](#), applicable [HHS conformance checklist\(s\)](#), or other agency conformance assessment template.

Prior to acceptance of deliverables, the offeror must demonstrate conformance to the [HHS digital accessibility conformance standards](#). The government reserves the right to perform testing on required ICT items to validate the offeror's digital accessibility and Section 508 conformance claims. If the government determines that conformance does not meet the HHS digital accessibility conformance standards, the government shall, at its option, require the offeror to remediate the item, at no additional cost to the government, to align with the HHS digital accessibility conformance standards prior to acceptance.

References:

- Section 508 Standards: <https://www.access-board.gov/ict/>
- HHS Policy on Section 508 Compliance and Digital Accessibility of Information and Communications Technology (ICT): <https://www.hhs.gov/web/governance/digital-strategy/it-policy-archive/department-of-health-and-human-services-hhs-policy-on-section-508-and-accessibility-of-technology.html>
- HHS Digital Accessibility Conformance Checklists: <https://www.hhs.gov/web/section-508/accessibility-checklists/index.html>

508 Testing, Verification, and Documentation: The Contractor must perform accessibility testing using ICT Baseline Tests or other acceptable Section 508 testing methodologies before delivery to ensure conformance with all relevant Section 508 requirements. Each major ICT deliverable must be accompanied by an Accessibility Conformance Report (ACR) using one of the following: NIH Section 508 ACR Creation Tool, HHS Conformance Checklist, VPAT® (WCAG 2.x edition), or another CO-approved template that demonstrates conformance. Ancillary deliverables--such as slides, invoices, reports, training or other documentation--must be tested for accessibility, and an ACR or equivalent documentation must be provided upon request by the Government. NIH reserves the right to independently verify any deliverable's conformance, and the Contractor must remediate non-conformant items at no additional cost to the Government.

SECTION 4 – GENERAL ORDER TERMS AND CONDITIONS

4.1 Period of Performance

The period of performance is to be completed at time of award.

4.2 Travel & Other Direct Costs

Delivery and installation will be included as part of the Firm-Fixed-Price.

4.3 Administrative Considerations

All questions and concerns regarding this effort must be directed to the Contracting Officer (CO) and COR identified below:

The CO for this effort is as follows:

Melissa Onyszko

Department of the Interior

Interior Business Center

Acquisition Services Directorate

Telephone: 703-964-3638

Email: melissa_onyszko@ibc.doi.gov

The COR for this effort is as follows:

Provided at time of award.

SECTION 5 – PROVISIONS

**** See Attachment 1 – Contract Certifications and Provisions for additional full-text provisions.**

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

HHS has adopted all Revolutionary FAR Overhaul (RFO) FAR parts. The full text RFO provisions may be accessed electronically at this address: <https://www.acquisition.gov/far-overhaul>.

The following provisions are hereby incorporated by reference:

Provision Number	Provision Title	Date
52.204-7	System for Award Management—Registration	Deviation Date Nov 2025
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation	Nov 2015
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	Feb 2016
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services	Deviation Date Nov 2025
52.240-90	Security Prohibitions and Exclusions Representations and Certifications	Deviation Date Nov 2025

SECTION 6 – CLAUSES

NOTICE: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Contracting Officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 -- Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<https://www.acquisition.gov/browse/index/far>.

HHS has adopted all Revolutionary FAR Overhaul (RFO) FAR parts. The full text RFO clauses may be accessed electronically at this address: <https://www.acquisition.gov/far-overhaul>.

The following clauses are hereby incorporated by reference.

FAR Clause	Clause Title	Clause Date
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-13	System for Award Management Maintenance	DOI Deviation MAR 2026
52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	JAN 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	NOV 2015
52.212-4	Contract Terms and Conditions – Commercial Products and Commercial Services	Nov 2025
52.219-6	Notice of Total Small Business Set-Aside	NOV 2025
52.222-3	Convict Labor	JUN 2003

52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-50	Combating Trafficking in Persons	OCT 2025
52.222-90	Addressing DEI Discrimination by Federal Contractors	APR 2026
52.223-23	Sustainable Products and Services	(MAY 2024) DOI Deviation FEB 2025
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	MAY 2024
52.227-14	Rights in Data—General	May 2014
52.227-19	Commercial Computer Software License	DEC 2007
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	OCT 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	MAR 2023
52.233-3	Protest After Award	AUG 1996
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.240-91	Security Prohibitions and Exclusions	Deviation Date NOV 2025
52.240-93	Basic Safeguarding of Covered Contractor Information Systems	Deviation Date NOV 2025

FAR CLAUSES INCORPORATED IN FULL TEXT

52.252-6 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior (48 CFR Chapter 14) and Health and Human Services (48 CFR Chapter 3) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of clause)

DEPARTMENT OF THE INTERIOR CLAUSES

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (Feb 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. CLIN/Item number of deliverable
2. Description of deliverable
3. Price of deliverable
4. Quantity of deliverable
5. Date deliverable was provided to the Government for inspection
6. Serial number/part number if applicable
7. Included with the electronic IPP invoice shall be an attached itemized (printable) invoice.

Additional supporting documentation MAY BE REQUESTED at the discretion of the COR.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

The vendor must submit an invoice for payment no later than 30 calendar days after the end of the month of performance of services/delivery.

The Contractor is responsible for ensuring invoices submitted are accurate and complete, and all labor, travel and other direct costs are in accordance with federal guidelines, the Federal Travel Regulations and other Government mandates and directives, as applicable.

DIAR 1452.201-70 Authorities and Delegations (Sep 2011)

- (a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.
- (b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the Contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.
- (c) The COR is not authorized to perform, formally or informally, any of the following actions:
- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
 - (2) Waive or agree to modification of the delivery schedule;
 - (3) Make any final decision on any contract matter subject to the Disputes Clause;
 - (4) Terminate, for any reason, the Contractor's right to proceed;
 - (5) Obligate in any way, the payment of money by the Government.
- (d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.
- (e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.
- (f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.
- (g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

HHSAR CLAUSES

352.239.79 Information and Communication Technology Accessibility Notice (March 2024) (DEVIATION)

(a) Pursuant to Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d), as amended by the Workforce Investment Act of 1998, all information and communication technology (ICT) supplies, products, platforms, information, documentation, and services support developed, acquired, maintained or delivered under this contract or order must comply with the Revised 508 Standards, which are located at 36 C.F.R. 1194.1 and Appendices A, B, and C, and are available at <https://www.access-board.gov/ict/>.

Information about Section 508 is available at <https://www.hhs.gov/web/section-508/index.html>.

(b) Additional Section 508 accessibility standards applicable to this contract or order may be identified in the specification, statement of work, or performance work statement. If it is determined by the Government that ICT supplies, products, platforms, information, documentation, and services support provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies, products, platforms, information, documentation, or services support to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(c) In the event of a modification(s) to this contract or order, which adds new ICT supplies or services or revises the type of, or specifications for, supplies, products, platforms, information, documentation, or services support, the Contracting Officer shall require that the Contractor submit a completed HHS Section 508 Accessibility Conformance Checklist (see <https://www.hhs.gov/web/section-508/accessibility-checklists/index.html>) or an Accessibility Conformance Report (ACR) (based on the Voluntary Product Accessibility Template (VPAT) see <https://www.itic.org/policy/accessibility/vpat>), and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies, products, platforms, information, documentation, and services support provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies, products, platforms, information, documentation, or services support to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(d) If this is an Indefinite-Delivery type contract, a Blanket Purchase Agreement or a Basic Ordering Agreement, the task/delivery order requests that include ICT supplies, products, platforms, information, documentation, or services support will define the specifications and accessibility standards for the order. In those cases, the Contractor shall be required to provide a completed HHS Section 508 Accessibility Conformance Checklist (see <https://www.hhs.gov/web/section-508/accessibility-checklists/index.html>) or an ACR (based on the VPAT see <https://www.itic.org/policy/accessibility/vpat>), and any other additional information necessary to assist the Government in determining that the ICT supplies, products, platforms, information, documentation, or services support conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the

Contractor do not conform to the described accessibility standards in the provided documentation, remediation of the supplies, products, platforms, information, documentation, or services support to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(e) The Contractor shall identify to the Contracting Officer any perceived exception or exemption to Section 508 requirements.

(End of clause)

SECTION 7 – ATTACHMENTS

The following documents are attached and made part of this Solicitation.

Attachment 1:	Contract Certifications and Provisions
Attachment 2:	Picture 1
Attachment 3:	Picture 2
Attachment 4:	Picture 3
Attachment 5:	VPAT2.5Rev_508_February2025